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**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,
Plaintiff,

v.

TYLER JAMES ROBINSON,
Defendant.

**NEWS MEDIA’S MEMORANDUM
OPPOSING MOTION TO CLASSIFY
APPLICATION FOR CERTIFICATE TO
SECURE OUT-OF-STATE WITNESS**

Case No. 251403576
Hon. Tony F. Graf, Jr.

Preferred Disposition

Defendant Tyler Robinson asks this Court to classify materials related to compelling a witness to appear and testify at the upcoming preliminary hearing. Defendant’s request was flawed from the start. Now, that request is also moot. The News Media¹ asks the Court to deny Defendant’s Motion to Classify accordingly.

¹ The following entities respond together here as representatives of the News Media: the Deseret News, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, the Utah Headliners Chapter of the Society of Professional Journalists, The Salt Lake Tribune, Jessica Schreifels, St. George News, the Associated Press, Fox13 News, Millard County Chronicle Progress, KOAL (Castle County Radio), KUER-

Background and Argument

On June 11, 2026, Defendant filed an Application for Certificate to Secure Out-of-State Witness [Doc. 592] and, at the same time, a Motion to Classify that application as private—that is, to keep the Application sealed and inaccessible to the public. As the State’s publicly filed Opposition [Doc. 605] (filed June 16, 2026), Robinson’s publicly filed Reply [Doc. 613] (filed June 18, 2026), and the Court’s public ruling and publicly filed Order [Doc. 615] (entered June 22, 2026) make clear, the target of that Application was Lance Twiggs, who “allegedly resided with and was in a romantic relationship with Defendant at the time of the alleged offenses.” *See* June 22, 2026 Order, at 1.

In its June 22, 2026 Order, the Court offered further detail regarding how the State intends to use Twiggs’ testimony:

[T]he State plans to establish probable cause through reliable hearsay, specifically a video-recorded interview The State will also rely on electronic messages, a handwritten note, and other corroborating evidence. According to the record before the Court, [Twiggs] allegedly made statements to investigators indicating that Defendant confessed to the crimes, concealed the weapon, disposed of clothing, and directed [Twiggs] not to contact law enforcement.

Id. at 1–2.

As the Court has repeatedly recognized in this matter, the public has a presumptive right to access court records. *See* Mar. 2026 Ruling re: Classification and Closure, at 1 [Doc. 460] (citing Utah R. Jud. Admin. 4-202.02(1); *State v. Allgier*, 2011 UT 47, ¶ 14, 258 P.3d 589). Open court records serve a variety of important interests: they “educat[e] the public about the workings of government and the decisions being made on the public’s behalf,” they “allow the public to hold public officials and employees accountable,” they “increase public confidence,” and they “provide material for independent research on improving government policy.” *Id.* (citing Utah R. Jud.

FM, Lehi Free Press, The Park Record, CBS Broadcasting, The New York Times Company, CNN, Fox News, and Law & Crime Network.

Admin 4-201(1)). A court can sustain a non-public classification only if it makes specific “findings and conclusions about specific court records,” “balance[s] the interests favoring opening and closing the record,” and “determine[s] there are no reasonable alternatives to closure sufficient to protect the interests favoring closure.” *Id.* (citing Utah R. Jud. Admin. 4-202.04(6)). The Court has also repeatedly recognized that when information at issue is “already contained in the public arena, interests favoring closure are ‘greatly diminished.’” *Id.* at 3 (citing *Allgier*, 2011 UT 47, ¶ 17).

With those standards and principles in mind, Defendant’s most recent Motion to Classify can be resolved quickly and easily. It should be denied.

First, Defendant’s Motion to Classify is plainly moot, either in large part or in its entirety. Defendant argues that its filing may be protected or safeguarded because it contains information that may disclose Twiggs’ identity and thereby interfere with an open investigation, a hearing, or a trial. *See* Mot. to Classify, at 2. But, of course, the central details of Twiggs’ testimony, including the substance of the communications between Twiggs and Robinson, are already public. That’s because those details all appear in the probable cause statement filed at the outset of this case:

Investigators identified an individual as the roommate of Robinson. Investigators interviewed the roommate, who stated that his roommate (referring to Robinson) made a joke on discord. Investigators asked if he would show them the messages on discord, he opened it and showed several messages to investigators and allowed investigators to take photos of the screen as each message was shown by Robinson’s roommate. These photos consisted of various messages, including content of messages between the phone contact name “Tyler” with an emoji icon, and Robinson’s roommate’s device. The content of these messages included messages affiliated with the contact “Tyler,” stating a need to retrieve a rifle from a drop point, leaving the rifle in a bush, messages related to visually watching the area where a rifle was left, and a message referring to having left the rifle wrapped in a towel. The messages also refer to engraving bullets, and a mention of a scope and the rifle being unique. Messages from the contact Tyler also mention that he had changed outfits.

See Aff. of Prob. Cause [Doc. 2]. Twiggs’ identity has long been public, as well. *See, e.g.*, Prelim. Hrg. Witness & Ex. List [Doc. 513] (disclosing Twiggs as a witness and identifying a “[r]ecorded statement . . . of Lance Twiggs” as evidence that may be admitted at the preliminary hearing). The

State’s opposition refers to Twiggs by name, as does Defendant’s reply, as does the Court’s June 22, 2026 ruling. *See* State’s Opp’n [Doc. 605]; Def.’s Reply [Doc. 613]; Order [Doc. 615]. It’s no wonder, then, that Defendant has conceded that those references “effectively moot[] that aspect of [his] motion to classify.” *See* Def.’s Reply, at 2 n.1. Because both Twiggs’ identity and the subject matter of the proposed testimony is clearly public, the Court should resolve this Motion as it’s resolved similar motions in the past: because the information that underlies Defendant’s Motion to Classify is already public, the Motion should be denied.

Second, Defendant’s argument regarding preliminary-hearing exhibits under *Archuleta* is misplaced. *Archuleta* stands for a simple principle: the public’s undisputed presumptive constitutional and common-law right to access court proceedings may not apply with the same force when the public asks to be “‘admitted beyond the bar’ to *physically handle and copy exhibits*.” *See State v. Archuleta*, 857 P.2d 234, 241 (Utah 1993) (emphasis added). That *Archuleta* ruling is a narrow one: “Permitting the public to parade into a courtroom to inspect murder weapons, bloody clothing, or other items of evidence that will conceivably be used at a subsequent trial would severely disrupt the efficient performance of justice and create obvious problems concerning the court’s and the State’s mandate to adequately preserve the integrity of the evidence.” *Id.* at 241–42. That ruling, of course, has no bearing at all on Defendant’s Motion to Classify arguments. The Application Defendant seeks to classify is not a preliminary-hearing exhibit, and once Defendant opted to attach the recorded statement as Exhibit A to his Application, it became something other than a preliminary-hearing exhibit—it became an attachment to a Court filing, comfortably within the public’s presumptive constitutional right of access. Accessing an exhibit on which Defendant relies could not conceivably “disrupt the efficient performance of justice” or “create obvious problems” regarding “adequately preserv[ing] the integrity of the evidence.” *Cf. id. Archuleta* has no application here, and the Court can safely reject Defendant’s reliance on that case.

Third, Defendant has once again failed to satisfy his burden of either (a) providing “a sufficient basis for the court to find that the interests favoring closure outweigh the interests favoring an open proceeding and presumptive right to access” or (b) demonstrating that no narrower “reasonable alternatives to closure” exist that could sufficiently “protect the interests favoring closure.” *Cf. Mar. 2026 Ruling re: Classification and Closure*, at 1, 2. As detailed above, any interests favoring closure are significantly diminished here because so much of the information at issue is already public. Were any sort of access restriction needed here (which, again, it is not), there are sensible ways to narrow a restriction, including by utilizing redaction to protect only the most sensitive material.² Defendant has made no such proposal, and he has therefore failed to meaningfully equip the Court to conclude that no narrower alternatives to closure exist. And as has often been the case in the past, Defendant has failed to supply any sort of granular detail about what information in his Application threatens his fair-trial rights or risks treading on some other protected interest. Instead, Defendant simply gestures broadly at his entire Application and its accompanying exhibits and suggests that disclosure of any part of that Application, at any point, would be inappropriate. That type of conclusory argument does not satisfy the burden that must be carried by parties seeking to strip to the public of its presumptive right of access. Those failures would doom Defendant’s Motion, even if it were not moot.

Conclusion

Defendant continues to insist, in filing after filing, that allowing access to routine filings will jeopardize his fair-trial rights. But as this Court has repeatedly recognized, “even in highly publicized cases, a defendant’s right to a fair trial can be protected ‘through the regular, time-honored

² To the extent Defendant seeks to protect “information as to where [Twiggs] is believed to be currently,” for example, that interest could have easily been addressed without violating the public’s access rights by preparing both a redacted and unredacted version.

processes for selecting jurors’ like enlarging the venire of potential jurors, utilizing a detailed jury questionnaire, and conducting a thorough voir dire of potential jurors.” See Mar. 2026 Ruling re: Classification and Closure, at 3. That is true once again here. In any event, to the extent that Defendant identified any information at all that he contends justifies a non-public classification, that information is already public, and Defendant’s Motion is therefore moot.

The News Media asks this Court to deny Defendant’s Motion to Classify accordingly and to allow the public access to Defendant’s Application and accompanying exhibits.

Respectfully submitted: June 24, 2026.

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Word-Count Certification

I hereby certify that this filing complies with the applicable word limit provided by Rule 7(q) of the Utah Rules of Civil Procedure, after excluding the portions identified in Rule 7(q)(2), as follows:

Type of filing:	Memoranda Opposing All Other Motions
Word limit:	5,400
Words in this filing:	1,659

Certificate of Service

I hereby certify that on June 24, 2026, I electronically filed the foregoing with the Court using the electronic filing system, which sent notification of such filing to all attorneys of record.

/s/ C. Michael Judd